

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RODOLFO MEDRANO and JARROD WILLIAMS,

Plaintiffs,
-against-

THE CITY OF NEW YORK, POLICE OFFICER
PAUL GRUB, shield #10075, UC POLICE OFFICER
shield #3742 and POLICE OFFICERS JOHN/JANE
DOE(S) #S 1-10,

Defendants.
-----X

Index No:

Date Purchased:

Plaintiff designates
QUEENS COUNTY as the
place of trial

The basis of venue is the residence
of the plaintiff, RODOLFO
MEDRANO, who resides at:
170-08 160th Street, Apt 2C
Queens, NY 11432

SUMMONS

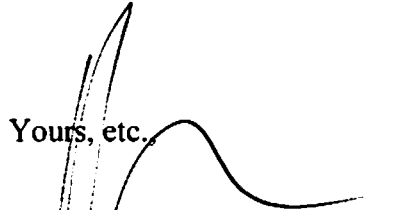
Date Filed:

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
February 13, 2013

Yours, etc.



DAVID A. ZELMAN, Esq.
Attorney for Plaintiffs
612 Eastern Parkway
Brooklyn, NY 11225
(718) 604-3072

Defendants' addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER PAUL GRUB
Intelligence Section
One Police Plaza, Rm 1108
New York, NY 10038

UC POLICE OFFICER shield #3742
One Police Plaza
New York, NY 10038

POLICE OFFICERS JOHN/JANE DOE(S)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RODOLFO MEDRANO and JARROD WILLIAMS,

Plaintiffs,

VERIFIED COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER
PAUL GRUB, shield #10075, UC POLICE
OFFICER shield #3742 and POLICE OFFICERS
JOHN/JANE DOE(S) #S 1-10,

Defendants.
-----X

Plaintiffs, for their verified complaint, by their attorneys, DAVID A. ZELMAN, ESQ.,
upon information and belief allege as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which PLAINTIFFS RODOLFO MEDRANO and JARROD WILLIAMS seek damages to redress the deprivation, under color of state law, of rights secured to them under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution, as well as for state law tort claims for assault and battery, and intentional infliction of emotional distress. On or about July 11, 2012 at approximately 5:40 P.M., in front of 164-02 Jamaica Avenue, Queens, NY, RODOLFO MEDRANO and JARROD WILLIAMS were falsely arrested with excessive force and assaulted by Defendants including, but not limited to, PAUL GRUB, shield #10075, UC POLICE OFFICER shield #3742, and POLICE OFFICERS JOHN DOE(S) #'s 1-10 (hereinafter "Defendants").

II. PARTIES

2. Plaintiff RODOLFO MEDRANO (hereinafter “MEDRANO”) at all times relevant hereto, was and still is a resident of the County of Queens, City and State of New York, with an address at 107-08 160th Street, Apt. 2C, Queens, NY 11432.
3. Plaintiff JARROD WILLIAMS (hereinafter “WILLIAMS”) at all times relevant hereto, was and still is a resident of the County of Queens, City and State of New York, with an address at 170-22 130th Avenue, Apt GB, Jamaica, NY 11434.
4. Defendant CITY OF NEW YORK (hereinafter “CITY”) is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter “NYPD”), and as such is the public employer of the Defendant officers herein.
5. Defendant POLICE OFFICER PAUL GRUB (hereinafter “GRUB”) was an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment. Officer GRUB is sued in his official and individual capacities.
6. Defendant UC POLICE OFFICER shield #3742 was an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment. UC POLICE OFFICER shield #3742 is sued in his official and individual capacities.
7. At all times herein Defendants POLICE OFFICERS JOHN/JANE DOE(S) #'s 1-10 (hereinafter “DOE(S)”) were NYPD police officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employees of Defendant CITY and within the scope of their employment.

8. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all times relevant hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

III. FACTS

9. On July 11, 2012 at approximately 5:40 P.M., Plaintiff MEDRANO was outside a store located at 164-02 Jamaica Avenue where police activity was taking place. A plainclothes officer had detained another individual outside the store and Plaintiff MEDRANO asked the officer “where’s your badge?” Without identifying himself, the officer attacked MEDRANO. The police officer then dragged MEDRANO across the sidewalk and caused him to hit his head on a street post.
10. While MEDRANO was being assaulted by the officer, Plaintiff WILLIAMS spoke to the officer in an attempt to defuse the situation. Officers then attacked WILLIAMS. Additional officers arrived on the scene and arrested MEDRANO and WILLIAMS.
11. Realizing there was no legitimate reason to arrest MEDRANO, police planted drugs on MEDRANO.
12. A marked police van appeared on the scene with a number of additional officers, and MEDRANO and WILLIAMS were placed in the van and transported to the 103rd Precinct.
13. WILLIAMS was detained at the precinct for approximately 3 hours before being transported to Central Booking. WILLIAMS was then held at Central Booking for approximately 15 hours before seeing a judge.

14. At the precinct WILLIAMS requested to go to the hospital to be treated for his injuries, but his requests were denied.
15. WILLIAMS was charged with Obstructing Governmental Administration in the Second Degree (Penal Law § 195.05), Resisting Arrest (Penal Law § 205.30), and Disorderly Conduct (Penal Law § 240.20-1). WILLIAMS's case was disposed via adjournment in contemplation of dismissal.
16. MEDRANO was detained at the precinct for approximately 6 hours before being transported to Central Booking. MEDRANO was then held at Central Booking for approximately 15 hours before seeing a judge.
17. MEDRANO requested to go to the hospital to be treated for his injuries while at the precinct, but his requests were denied.
18. MEDRANO was charged with Obstructing Governmental Administration in the Second Degree (Penal Law § 195.05), Resisting Arrest (Penal Law § 205.30), and Disorderly Conduct (Penal Law § 240.20-1).
19. The charges against MEDRANO are still pending.
20. After being released, MEDRANO and WILLIAMS went to the emergency department of Queens Hospital Center, where they were treated for their injuries sustained during the arrest.
21. On the 10th day of September, 2012, Plaintiffs' Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of RODOLFO MEDRANO and JARROD WILLIAMS, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.

22. At least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

IV. FIRST CAUSE OF ACTION
Pursuant to § 1983 (FALSE ARREST)

23. Paragraphs 1 through 22 of this complaint are hereby realleged and incorporated by reference herein.
24. That Defendants had neither valid evidence for the arrest of Plaintiffs nor legal cause or excuse to seize and detain them.
25. That in detaining Plaintiffs without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. Plaintiffs were but a few of those persons.
26. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
27. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

28. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of Plaintiffs' rights alleged herein.
29. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of Plaintiffs' rights, subjected Plaintiffs to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
30. By reason of the foregoing, Plaintiffs sustained a loss of liberty, attorneys fees, damage to reputation, economic damages, physical and psychological injuries and suffered pain, distress and shock, some of which injuries Plaintiffs believe will be permanent in nature.
31. As a result of the foregoing, Plaintiffs incurred and, upon information and belief, will hereafter incur, expenses for their medical care and treatment, attorneys fees, and have been and will in the future continue to be hindered and impeded in the performance of their vocations, with consequent loss of earnings, and have been damaged in the sum of Ten Million (\$10,000,000.00) Dollars.
32. That this action falls within one or more exceptions of CPLR 1602, including but not limited to CPLR 1602(11).

V. SECOND CAUSE OF ACTION
Pursuant to State Law (False Arrest)

33. Paragraphs 1 through 32 are hereby realleged and incorporated by reference herein.
34. That the seizure, detention and imprisonment of Plaintiffs was unlawful in that Defendants had no probable cause to detain, arrest and/or imprison them.

35. That Defendants intended to confine Plaintiffs.
36. That Plaintiffs were conscious of the confinement and did not consent to it.
37. That the confinement was not otherwise privileged.
38. By reason of Defendants acts and omissions, Defendants, acting in gross and wanton disregard of Plaintiffs' rights, deprived them of their liberty when they subjected them to an unlawful, illegal and excessive detention, in violation of State law.
39. That by reason of the foregoing, Plaintiffs suffered physical injuries, mental injuries, economic injury, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
40. As a result of the foregoing, Plaintiff was damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

VI. THIRD CAUSE OF ACTION
Pursuant to § 1983 (EXCESSIVE FORCE)

41. Paragraphs 1 through 40 are hereby realleged and incorporated by reference herein.
42. That the incident that resulted from the intentional application of physical force by Defendants against MEDRANO and WILLIAMS constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
43. That Defendants had no legal cause or reason to use excessive force in effectuating MEDRANO's or WILLIAMS's arrest.
44. That Defendants violated MEDRANO's and WILLIAMS's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against them.
45. That at the time of the arrest or while in custody, MEDRANO and WILLIAMS did not pose a threat to the safety of the arresting officers.

46. That MEDRANO and WILLIAMS were not actively resisting arrest or attempting to evade arrest.
47. That defendant CITY, through its officers, agents, and employees, unlawfully subjected MEDRANO and WILLIAMS to excessive force while effectuating their arrests.
48. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
49. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of MEDRANO's and WILLIAMS's rights, subjected MEDRANO and WILLIAMS to excessive force while effectuating their arrests, in violation of their rights pursuant to the Fourth and Fourteenth Amendments of the Untied States Constitution.
50. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of MEDRANO's and WILLIAMS's civil rights, including but not limited to the right to be free from the application of excessive force.
51. That upon information and belief, in 2012, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.
52. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
53. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

54. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of defendant CITY to the constitutional rights of arrestees and were the cause of the violations of MEDRANO's and WILLIAMS's rights alleged herein.
55. By reason of the foregoing, MEDRANO and WILLIAMS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.
56. As a result of the foregoing, Plaintiff was damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

VII. FOURTH CAUSE OF ACTION
Pursuant to State Law (EXCESSIVE FORCE)

57. Paragraphs 1 through 56 are hereby realleged and incorporated by reference herein.
58. That the incident that resulted from the intentional application of physical force by Defendants against MEDRANO and WILLIAMS constituted a seizure.
59. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
60. That Defendants had no legal cause or reason to use excessive force in effectuating MEDRANO's or WILLIAMS's arrest.
61. That at the time of the arrest or while in custody, MEDRANO and WILLIAMS did not pose a threat to the safety of the arresting officers.
62. That MEDRANO and WILLIAMS were not actively resisting arrest or attempting to evade arrest.

63. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
64. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of MEDRANO's and WILLIAMS's rights, subjected MEDRANO and WILLIAMS to excessive force while effectuating their arrests, in violation of the laws of the State of New York.
65. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of MEDRANO's and WILLIAMS's civil rights, including but not limited to the right to be free from the application of excessive force.
66. By reason of the foregoing, MEDRANO and WILLIAMS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.
67. As a result of the foregoing, Plaintiff was damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

VIII. FIFTH CAUSE OF ACTION
Pursuant to § 1983 (MALICIOUS PROSECUTION)

68. Paragraphs 1 through 67 are hereby realleged and incorporated by reference herein.
69. That Defendants acting with malicious intent, arrested Plaintiff MEDRANO and initiated a criminal proceeding despite the knowledge that MEDRANO had committed no crime.
70. That there was no probable cause for the arrest and criminal proceeding.

71. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of MEDRANO's rights, deprived MEDRANO of his liberty when they maliciously prosecuted him and subjected them to an unlawful, illegal and excessive detention, in violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
72. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, MEDRANO was maliciously prosecuted despite the fact that he had committed no violation of the law.
73. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.
74. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
75. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of defendant CITY to the constitutional rights of arrestees and were the cause of the violations of MEDRANO's and WILLIAMS's rights alleged herein.
76. That in so acting, defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

77. That upon information and belief, in 2012, defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.
78. That by reason of the foregoing, MEDRANO suffered physical and psychological injuries, traumatic stress, post traumatic stress disorder, mental anguish, economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.
79. As a result of the foregoing, Plaintiff was damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

IX. SIXTH CAUSE OF ACTION
Pursuant to State Law (MALICIOUS PROSECUTION)

80. Paragraphs 1 through 79 are hereby realleged and incorporated by reference herein.
81. That Defendants acting with malicious intent, arrested Plaintiff MEDRANO and initiated a criminal proceeding despite the knowledge that MEDRANO had committed no crime.
82. That there was no probable cause for the arrest and criminal proceeding.
83. That by reason of Defendants acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of MEDRANO's rights, deprived him of his liberty when they maliciously prosecuted him in violation of the Laws of the State of New York.
84. That by reason of the foregoing, MEDRANO suffered physical and psychological injuries, traumatic stress, post traumatic stress disorder, mental anguish, economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

85. As a result of the foregoing, Plaintiff was damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

X. SEVENTH CAUSE OF ACTION
Pursuant to State Law (ASSAULT AND BATTERY)

86. Paragraphs 1 through 85 are hereby realleged and incorporated by reference herein.
87. That Defendants intended to cause harmful bodily contact to MEDRANO and WILLIAMS.
88. That defendant Defendants, in a hostile manner, voluntarily caused MEDRANO's and WILLIAMS's injuries.
89. That Defendants' contact with MEDRANO AND WILLIAMS constituted a battery in violation of the laws of the State of New York.
90. That by reason of the foregoing, MEDRANO and WILLIAMS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.
91. As a result of the foregoing, Plaintiff was damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

XI. EIGHTH CAUSE OF ACTION
Pursuant to § 1983 (DENIAL OF FAIR TRIAL)

92. Paragraphs 1 through 91 are hereby realleged and incorporated by reference herein.
93. By fabricating evidence, Defendants violated MEDRANO's constitutional right to a fair trial.
94. Defendants were aware or should have been aware of the falsity of the information used to prosecute plaintiff.

95. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, economic damages, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
96. As a result of the foregoing, Plaintiff was damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

XII. NINTH CAUSE OF ACTION
Denial of Medical Treatment

97. Paragraphs 1 through 96 are hereby realleged and incorporated by reference herein.
98. MEDRANO and WILLIAMS, while detained in Defendants' custody prior to trial, were denied access to medical care needed to remedy a serious medical condition.
99. Defendants failed to provide needed medical care to MEDRANO and WILLIAMS because of deliberate indifference to their need therefor.
100. By reason of Defendant's acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of MEDRANO's and WILLIAMS's rights, deprived MEDRANO and WILLIAMS of their liberty when it denied them medical care while they were in its custody, in violation of his due process rights pursuant to the Fourteenth Amendment of the United States Constitution and the laws of the State of New York.
101. That in so acting, Defendant CITY, abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.
102. That upon information and belief, in 2012, Defendant CITY had a policy or routine practice of denying medical care to pre-trial detainees in its custody.

103. That upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately train and supervise their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
104. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
105. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of MEDRANO's and WILLIAMS's rights alleged herein.
106. That Defendant, through its officers, agents and employees, unlawfully denied MEDRANO and WILLIAMS medical care while they were in its custody.
107. By reason of the foregoing, MEDRANO and WILLIAMS suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

XIII. TENTH CAUSE OF ACTION

Pursuant to State Law (RESPONDEAT SUPERIOR)

108. Paragraphs 1 through 107 are hereby realleged and incorporated by reference herein.
109. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.
110. That at all times Defendants were acting within the scope of their employment.

111. That Defendant CITY was able to exercise control over Defendants activities.
112. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior.
113. By reason of the foregoing, Plaintiffs suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.
114. As a result of the foregoing, Plaintiffs were damaged in the sum of Ten Million (\$10,000,000.00) Dollars.

XIV. ELEVENTH CAUSE OF ACTION
Pursuant to § 1988 (ATTORNEY'S FEES AND COSTS)

115. Paragraphs 1 through 114 are hereby realleged and incorporated by reference herein.
116. That the actions of defendants resulting from Plaintiffs' arrest, detention, and prosecution constitute an unlawful arrest and imprisonment, assault, malicious prosecution and denial of fair trial, which deprived the Plaintiffs of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments Four, Five, Six and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§1981, 1983, 1985, 1986, and 1988.
117. That Plaintiffs have and will continue to incur significant legal fees in the prosecution of their claims as described in this complaint.
118. That in the event the Plaintiffs are successful in this litigation, they will be designated as the "prevailing party" in this action as defined by 42 U.S.C. § 1988 and therefore be entitled to attorneys fees from defendants.

119. As a result defendants become responsible to Plaintiffs in an amount which exceeds the jurisdiction of this Court and has not yet been ascertained due to the continuing nature of this litigation.

WHEREFORE, Plaintiffs demand judgment against defendants in the sum of Ten Million (\$10,000,000.00) Dollars on the First through Eleventh Causes of Action, together with costs and disbursements of this action. Plaintiff also demands an award of reasonable attorney's fees pursuant to 42 U.S.C. §1988.

ATTORNEY VERIFICATION

David A. Zelman, Esq., an attorney at law, duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury that:

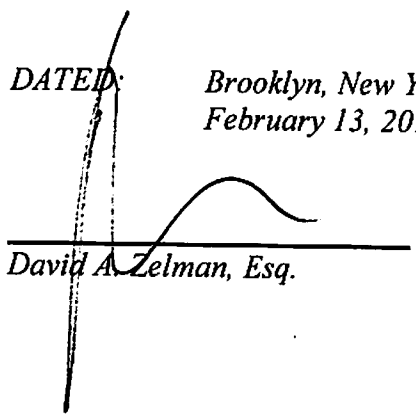
He is the attorney for the plaintiff(s) in the above entitled action. That he has read the foregoing VERIFIED COMPLAINT and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the plaintiff(s) is that the plaintiff(s) herein reside(s) in a county other than the one in which the plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of his belief are communication, papers, reports and investigation contained in the file.

*DATED: Brooklyn, New York
February 13, 2013*

David A. Zelman, Esq.

A handwritten signature in black ink, appearing to read "David A. Zelman", is written over a horizontal line. The signature is stylized with a large, sweeping initial "D" and a long, horizontal stroke extending to the right.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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Plaintiffs,

-against-

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OFFICER shield #3742 and POLICE OFFICERS
JOHN/JANE DOE(S) #S 1-10,

Defendants.

-----X

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF DAVID A. ZELMAN
ATTORNEY FOR PLAINTIFFS

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Brooklyn, NY 11225
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